

Sarvare Alam v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 January 2020 · Writ-C No. 306 of 2020 · **Writ dismissed for unexplained delay; liberty to seek clause 6.14 installments.**

HEADNOTE

A writ filed more than six years after a 2013 electricity demand, and more than a year after the Permanent Lok Adalat dismissed the claim as not maintainable, is dismissed for unexplained delay. A consumer who cannot pay the arrears in a lump sum may still apply to the Executive Engineer for installment facility under clause 6.14 of the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Sarvare Alam challenged a 20 September 2013 demand of Rs. 3,41,662 issued by respondent no. 3 and subsequent recovery, including a 22 December 2014 citation. He had taken the dispute to the Permanent Lok Adalat, which dismissed it as not maintainable on 11 December 2018. The writ was filed in 2020, more than six years after the demand and more than a year after the Lok Adalat dismissal. In the petition he said he could not pay the entire arrears at once and sought easy installments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

delayed writ against demand; installment facility

HOLDING

A writ seeking to quash a 2013 electricity demand and stay recovery, filed after more than six years with no explanation for the delay—including more than a year after the Permanent Lok Adalat dismissed the claim as not maintainable—is dismissed. A consumer unable to pay arrears in a lump sum may apply to the concerned Executive Engineer for installment facility under clause 6.14 of the Electricity Supply Code, 2005.

PRINCIPLE TAGS

installment-payment-clause-6.14 After dismissing the delayed writ, the Court observed that if the petitioner was ready to pay the arrears in easy installments, he may apply to the concerned Executive Engineer under clause 6.14 of the Electricity Supply Code, 2005.

instalment-facility-clause-6.14-for-financial-distress The petitioner's pleading that he could not deposit the entire amount at once and wanted easy installments was met by pointing him to the clause 6.14 facility rather than by quashing the demand.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE 20.09.2013 DEMAND OF RS. 3,41,662 AND THE RECOVERY CITATION DATED 22.12.2014

Writ dismissed on unexplained delay; merits of the demand were not examined.